

Court No. - 13

Case :- CRIMINAL APPEAL DEFECTIVE U/S 372 CR.P.C.
No. - 2 of 2025

Appellant :- Madhyanchal Vidut Vitran Nigam Ltd. Thru. E.E.,
Electricity Distribution Division, Sandila, Hardoi

Respondent :- Kranti Gupta, Proprietor/Director Radhey
Shyam Roller Flour Mill, Hardoi

Counsel for Appellant :- Amarjeet Singh Rakhra

Hon'ble Rajeev Singh,J.

1. Heard Shri Amarjeet Singh Rakhra, learned counsel for the applicant- Madhyanchal Vidut Vitran Nigam Ltd.

2. The present leave to appeal has been filed with the prayer to summon the trial court record from Special Judge E.C. Act/Additional District Judge-IV, Hardoi and to admit the present appeal.

3. Learned counsel for the applicant submits that on 03.07.2018, inspection was done by a team of experts in relation to the electricity theft, during which, it was found that the meters which were installed in the premises of the factory of the respondent as well as at the pole were tampered with. After the completion of inspection, inspection report was provided to the respondent but he refused to accept the same. Thereafter, FIR of case in question was lodged and investigation was conducted and charge sheet was submitted by the Investigating Officer after recording the statements of the witnesses including the members of the Expert Team, on the basis of which, trial was proceeded and charges were framed. He further submits that it is a case of prosecution that CT/PT unit of the terminals were found tampered with. He also submits that after tampering with the aforesaid points, speed of the meter became slow which led to theft under Section 135B of the Electricity Act. He next submits that the witnesses were also examined before the trial court but without considering all these evidences, the trial court acquitted the respondent on the technical ground that the procedure mentioned in Chapter VIII of the Electricity Supply Code were not followed by the officials. He further submits that merely on the ground that any procedure was not followed, the accused should not be acquitted. Therefore, kind indulgence of this court is necessary.

4. Considering the submission of learned counsel for the

applicant, going through the contents of application, FIR, order of trial court as well as other relevant documents, it is evident that the case of prosecution before the trial court is that the CT/PT terminals were tampered with, as a result, the speed of meter became slow. It is also evident from the impugned judgement that the mandatory provisions as mentioned in paragraph- 20 and 33 of the UP Electricity Code 2005 were not complied with. DW-1 was also examined before the trial court and in her deposition, it was stated that key of the meter room was lying with the officials of the power corporation and this fact was also not denied by the prosecution. It is also undisputed that the alleged meters were also not sent to labs for testing. Therefore, I am of the view that there is no illegality in the order passed by the trial court as the same has been passed after considering all the materials available on record. In such circumstances, the present appeal being devoid of merits is liable to be dismissed.

5. In view of the above, the present leave to appeal is hereby **dismissed**.

Order Date :- 3.3.2025

V. Sinha